

25STCV15515 25STCV15515

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Case Number: 25STCV15515 Hearing Date: August 14, 2026 Dept: 406

DELTA PACIFIC TECHNOLOGIES, LLC,

Plaintiff,

v.

FRANK GONZALEZ,

Defendant.

Case No.: 25STCV15515

Hearing Date: August 14, 2026

[TENTATIVE] order RE:

defendant frank gonzalez's motion for judgment on the pleadings

BACKGROUND

On May 29, 2025, Plaintiff Delta Pacific Technologies, LLC (Delta) filed this action for declaratory and injunctive relief against Defendant Frank Gonzalez (Gonzalez). The dispute arises from Gonzalez's claims of ownership over Delta. Delta alleges that it was originally founded by Ellen Atkins, who passed away in January 2025. Ellen Atkins allegedly passed Delta to her son, Kyle Atkins, who possessed power of attorney. Gonzalez is a former employee who was allegedly fired by Ellen Atkins for embezzlement. However, Gonzalez claims that he entered into a verbal partnership with Ellen Atkins to take over Delta. Delta filed this action to obtain a judicial declaration of its ownership rights and to enjoin Gonzalez from making further claims of ownership.

On October 6, 2025, Gonzalez filed a first amended cross-complaint (FACC) against Delta, Kyle Atkins, Don Atkins, and Rachael Fedden (collectively, Cross-Defendants). Kyle and Don Atkins are the sons of Ellen Atkins. Rachael Fedden is an employee of Delta who was allegedly fired and then rehired. Gonzalez alleges that Cross-Defendants locked him out of the

business by claiming ownership over Delta and having the police detain him until he relinquished the office keys. The FACC asserts a single cause of action for conversion of the keys, which Gonzalez alleges led to the following damages: (a) loss of access to the business premises and company vehicles; (b) loss of shared profits; and (c) reputational harm.

On June 26, 2026, Gonzalez filed the instant motion for judgment on the pleadings. Delta filed an opposition on August 3, 2026.

LEGAL STANDARD

A motion for judgment on the pleadings may be made on the same grounds as those supporting a general demurrer, i.e., that the pleading fails to state facts sufficient to constitute a legally cognizable claim or defense. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650.) A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. (*Cloud v. Northrop Grumman Corp.* (1999) 67 Cal.App.4th 995, 999.) Judgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution. (*Schabarum v. Calif. Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

DISCUSSION

Gonzalez's MJOP is based on the contention that Delta Pacific Technologies, LLC is not the valid successor to Delta Pacific Technologies, Inc. This is a question of fact unsuited for resolution on the pleadings. Delta LLC alleges that it is the successor to Delta Inc., which must be assumed true for pleading purposes. Delta LLC is not required to allege the evidentiary facts proving its successor status. Accordingly, there is no basis for judgment on the pleadings.

CONCLUSION

Defendant Frank Gonzalez's motion for judgment on the pleadings is DENIED.

DELTA PACIFIC

TECHNOLOGIES, LLC,

Plaintiff,

v.

FRANK GONZALEZ,

Defendant.

Case No.: 25STCV15515

Hearing Date: August 14, 2026

[TENTATIVE]

order RE:

cross-complainant frank gonzalez's motion

for reconsideration

BACKGROUND

On May 29, 2025, Plaintiff Delta

Pacific Technologies, LLC (Delta) filed this action for declaratory and

injunctive relief against Defendant Frank Gonzalez (Gonzalez). The dispute

arises from Gonzalez's claims of ownership over Delta. Delta alleges that it

was originally founded by Ellen Atkins, who passed away in January 2025. Ellen

Atkins allegedly passed Delta to her son, Kyle Atkins, who possessed power of

attorney. Gonzalez is a former employee who was allegedly fired by Ellen Atkins

for embezzlement. However, Gonzalez claims that he entered into a verbal

partnership with Ellen Atkins to take over Delta. Delta filed this action to

obtain a judicial declaration of its ownership rights and to enjoin Gonzalez

from making further claims of ownership.

On October 6, 2025, Gonzalez filed a

first amended cross-complaint (FACC) against Delta, Kyle Atkins, Don Atkins,

and Rachael Fedden (collectively, Cross-Defendants). Kyle and Don Atkins are

the sons of Ellen Atkins. Rachael Fedden is an employee of Delta who was

allegedly fired and then rehired. Gonzalez alleges that Cross-Defendants locked him out of the business by claiming ownership over Delta and having the police detain him until he relinquished the office keys. The FACC asserts a single cause of action for conversion of the keys, which Gonzalez alleges led to the following damages: (a) loss of access to the business premises and company vehicles; (b) loss of shared profits; and (c) reputational harm.

On June 8, 2026, the Court denied

Gonzalez's motion for leave to file a second amended cross-complaint.

On June 22, 2026, Gonzalez filed the

instant motion for reconsideration. Cross-Defendants filed an opposition on

August 3, 2026. Gonzalez filed a reply on August 7, 2026.

LEGAL STANDARD

"When an application for an order has been

made to a judge, or to a court, and refused in whole or in part, or granted, or

granted conditionally, or on terms, any party affected by the order may, within

10 days after service upon the party of written notice of entry of the order

and based upon new or different facts, circumstances, or law, make application

to the same judge or court that made the order, to reconsider the matter and

modify, amend, or revoke the prior order. The party making the application shall

state by affidavit what application was made before, when and to what judge,

what order or decisions were made, and what new or different facts,

circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008(a).)

DISCUSSION

Gonzalez's proposed SACC adds

Delta's counsel (Kennedy McCarthy & Rumm) as a defendant and adds eight

causes of action. This would substantially expand the scope of the case without

good cause. Therefore, the Court denied leave to amend, finding that Gonzalez

had failed to explain what new facts supported the amendment or why he could

not have made the amendment earlier. The Court rejected Gonzalez's claim that

he recently discovered "that Delta Pacific Technologies LLC had been operating

since December 3, 2024" because it bore no relation to the claims, and in any

case, the complaint was clearly filed by Delta Pacific Technologies LLC.

In the instant motion, Gonzalez

cites "entity misidentification" as a different circumstance warranting

reconsideration. This is merely a rehash of the "Delta LLC" issue that the

Court rejected in the underlying motion. According to the complaint, Delta was

founded by Ellen Atkins as Delta Pacific Technologies, Inc. (Compl. ¶

1.) Plaintiff Delta Pacific Technologies, LLC is the successor entity. (Ibid.)

There is no "misidentification" or "overlooked fact." This has been the

allegation from the outset, and Delta LLC has always been the party of record.

There remains no valid explanation for Gonzalez's substantial delay in raising the proposed SACC or any explanation for why amendment is necessary. Gonzalez's skepticism as to the validity of the succession is not a basis for reconsideration. The purported "new" evidence, consisting of gas bills charged to Delta Pacific Technologies, Inc., has no bearing on the proposed amendments and does not justify the delay in seeking leave to amend.

In sum, the Court finds no reason to reconsider its order denying leave to amend.

CONCLUSION

Cross-Complainant Frank Gonzalez's motion for reconsideration is DENIED.